

CCRB INVESTIGATIVE RECOMMENDATION

Investigator: Tim Wheelock	Team: Squad #15	CCRB Case #: 202310971	☐ Force	☐ Discourt.	☐ U.S.
			☒ Abuse	☐ O.L.	☐ Injury
Incident Date(s) Monday, 11/20/2023 3:25 PM	Location of Incident: 84th Precinct stationhouse	18 Mo. SOL 5/20/2025	Precinct: 84		
Date/Time CV Reported Mon, 11/20/2023 10:29 PM	CV Reported At: CCRB	How CV Reported: Phone	Date/Time Received at CCRB Mon, 11/20/2023 10:29 PM		
Complainant/Victim	Type	Home Address			
Subject Officer(s)	Shield	TaxID	Command		
1. PO Mosa Parris	09817	939746	084 PCT		
Witness Officer(s)	Shield No	Tax No	Cmd Name		
1. PO Russell Scott	09614	948562	084 PCT		
Officer(s)	Allegation	Investigator Recommendation			
A . PO Mosa Parris	Abuse: Police Officer Mosa Parris took (a) photograph (s)/recording(s) of § 87(2)(b)	A . Substantiated			

Case Summary

On November 20, 2023, § 87(2)(b) filed a written complaint inside the 84th Precinct stationhouse, which was referred to CCRB via the Call Processing System on November 21, 2023, by Sgt. Brittany Price.

On November 20, 2023, at approximately 12:30pm, § 87(2)(b) went to the 84th Precinct stationhouse to retrieve his cell phone, which had been vouchered as evidence following his being arrested at the 84th Precinct stationhouse on September 18, 2023. While waiting for his property to be returned to him, § 87(2)(b) was photographed by PO Mosa Parris of the 84th Precinct with a personal cellphone (**Allegation A - Abuse of Authority: Photography/Videography, substantiated**).

BWC footage was obtained from PO Abel Nicholas-LaChapelle, PO Brandon Rivera and PO Bryant Bravo (**Board Review #05**). Stationhouse security footage was obtained from the 84th Precinct stationhouse (**Board Review #06**). No other video was found for this incident.

Findings and Recommendations

Allegation (A) Abuse of Authority: Police Officer Mosa Parris took a photograph of § 87(2)(b).

§ 87(2)(b) was interviewed by the CCRB on December 1, 2023. PO Parris was interviewed by the CCRB on February 13, 2024.

In his interview (**Board Review #01**) § 87(2)(b) said that he went to the 84th Precinct stationhouse on November 20, 2023, at approximately 12:30pm, to retrieve his cell phone which had been seized as evidence (**Board Review #02**) following his arrest on September 18, 2023 (**Board Review #03**). When he arrived at the stationhouse, he spoke to an unidentified officer whom he believed to be the Property Clerk. He told the Property Clerk that his case had been dismissed and he had come to retrieve his cell phone. The Property Clerk informed § 87(2)(b) that the precinct had not yet received any information on their end showing that his case had been dismissed, and therefore he could not release the cell phone. § 87(2)(b) asked the Property Clerk to call his lawyer and speak to him and was denied. At approximately 1:00 or 2:00pm an officer called his lawyer and spoke to him. While his lawyer attested to the dismissal of § 87(2)(b) case and asked for his property to be released, the officers maintained that they had no evidence of his case being dismissed in their records and refused to release the cell phone. As this conversation was happening, PO Parris exited the back area of the stationhouse and held her phone in his direction and recorded him as she walked out of the stationhouse. § 87(2)(b) was unsure if PO Parris was using a personal or departmental cellphone. § 87(2)(b) said he called after PO Parris and told her, "Do not erase that because I'm gonna FOIL request that" and accused her of recording him. PO Parris replied, "How do you know I'm recording you?" and § 87(2)(b) recalled saying, "Yo miss, I can see you recording me right now." PO Parris then left the stationhouse, while § 87(2)(b) remained waiting for his phone. At 3:00pm or 4:00pm, his phone was released to him after the precinct was able to verify that his case had been dismissed. He then requested a complaint form and the name of PO Parris from an unspecified officer at the stationhouse. After filling out the complaint form, § 87(2)(b) left the stationhouse.

PO Parris stated in her interview (**Board Review #04**) that on November 20, 2023, she was working as the Property Clerk for the 84th Precinct, and that § 87(2)(b) came into the stationhouse to retrieve his cellphone. PO Parris recognized § 87(2)(b) as he had been to the 84th Precinct stationhouse three times since September 2023. Each time he came to the stationhouse he was intoxicated, and he yelled

and cursed at her and other officers. § 87(2)(b) cellphone had been categorized in such a way that she was unable to release it to him when he requested. PO Parris could not recall the exact categorization but explained that the phone could only be released if recategorized as “safekeeping” by § 87(2)(b) arresting officer, who had vouchered the phone. PO Parris did not recall the name of the arresting officer, who was either off duty that day or out on patrol. PO Parris attempted to explain the issue to § 87(2)(b) and asked him to leave and come back later when the categorization issue could be resolved, but § 87(2)(b) became enraged and refused to leave until his phone was returned to him. § 87(2)(b) remained in the stationhouse for several hours yelling and cursing at her and other officers. She was instructed by an unnamed sergeant to, “Get rid of him § 87(2)(b) PO Parris then called § 87(2)(b) arresting officer with her personal cellphone to explain the situation to him. § 87(2)(b) arresting officer did not recognize § 87(2)(b) name and requested PO Parris to send him a picture of § 87(2)(b) PO Parris used her cellphone camera to take a photo of § 87(2)(b) from approximately 20 feet from the T/S Operator’s desk, but the picture was not clear enough for § 87(2)(b) arresting officer to identify him. § 87(2)(b) arresting officer then asked her to switch the phone call to facetime and show § 87(2)(b) to him, which she did. At this point § 87(2)(b) arresting officer recognized § 87(2)(b) and said, “Oh him. Not again.” The officer was unable to come in to fix the categorization issue, and she informed the sergeant that she had done everything she could to get § 87(2)(b) property released. PO Parris’ tour ended before § 87(2)(b) property was released and she left the stationhouse. As she was leaving, § 87(2)(b) yelled at her to not record him and not delete any possible recordings from her phone. When asked during the interview if MOS were permitted to use their personal phones to take photographs or record civilians while on duty, PO Parris said that she was unaware whether it was permitted to do so.

Stationhouse security footage (**Board Review #05**) begins with § 87(2)(b) already inside the stationhouse and shows him being present for approximately an hour and a half. At the **28:12**-mark of both the T/S and Entrance facing cameras, PO Parris is seen exiting the secure area of the stationhouse and exiting the building with her cellphone in her hand, held up to chest level. At the **28:16**-mark for both cameras § 87(2)(b) can be seen pointing his finger at PO Parris as he says something to her. This footage does not contain audio so there is no recording of what precisely § 87(2)(b) says to PO Parris. At the **28:18**-mark PO Parris exits the stationhouse while § 87(2)(b) continues to point at her and speak.

PO Abel Nicholas-LaChapelle’s BWC footage (**Board Review #06**) shows § 87(2)(b) complaining about being filmed by PO Parris from the **2:10**-mark until the **2:31**-mark. § 87(2)(b) says, “A lady just came from out here [pointing at the T/S window], that’s what I’m making a complaint on right now. She took her phone and was recording ME!” An off-camera officer says, “Who?” and § 87(2)(b) continues, “A lad-Parris, what’s her name, Parris 2817. She came from back there and pulled out her phone and recorded me. And she got to leave with her phone laughing and giggling.” At the **2:57**-mark § 87(2)(b) says, “And I told her, do not, do not delete that. Because if she delete that, that is a crime!”

NYPD Operations Order #20 (**Board Review #07**) outlines the rules MOS must follow for utilization of both Department provided devices such as smartphones and tablets, as well as personal devices. **Section 22** prohibits MOS from using personal devices “to conduct official Department business except under exigent circumstances i.e., in the event of an emergency.” **Section 23** states that MOS are prohibited from using their, “personal cellular telephone/smartphone during their tour (except on authorized meal or in the event of an emergency).”

§ 87(2)(g)

§ 87(2)(b) BWC footage from PO Nicholas-LaChapelle shows § 87(2)(b) clearly identifying PO Parris by name and alleging her recording him. Stationhouse footage shows

PO Parris exiting the stationhouse at the end of her tour with her phone in her hand, possibly angled in § 87(2)(b) direction, but does not clearly show her using her phone to record. § 87(2)(g)

It is recommended that **Allegation A** be closed as **substantiated**.

Civilian and Officer CCRB Histories

- § 87(2)(b)
- PO Mosa Parris has been a member of service for 18 years and this is the first CCRB complaint to which she has been a subject (**Board Review #09**).

Mediation, Civil, and Criminal Histories

- § 87(2)(b) was offered Mediation several times and said he wished to speak to his lawyer before answering. Ultimately, this case was deemed not suitable for mediation.
- § 87(2)(b) does not have a Notice of Claim filed in relation to this incident.
- [§ 87(2)(b)] [§§ 86(1)(3)&(4)] [§ 87(2)(c)]

RPBP History

- This complaint did not contain any allegations of Racial Profiling/Bias-Based Policing.

Squad No.: 15

Investigator:	Timothy J Wheelock	Inv. Timothy J Wheelock	04/02/2024
	Signature	Print Title & Name	Date

Squad Leader:		IM Simon Wang	04/04/24
	Signature	Print Title & Name	Date

Reviewer:			
	Signature	Print Title & Name	Date